

STATE OF INDIANA)
) SS:
COUNTY OF ALLEN) CAUSE NO.

BRANDON ORVIS

VS.

MARKOS JOHNSON and
DIAMONDS OF TRUCKING LLC

COMPLAINT FOR DAMAGES

Come now the Plaintiff, Brandon Orvis, by counsel, Ken Nunn Law Office, and for his cause of action against the Defendants, Markos Johnson and Diamonds of Trucking LLC, alleges and states as follows:

STATEMENT AND JURISDICTION

1. This is a clear liability collision in which Defendants' 2016 International 4300 tractor and attached trailer, was negligently driven by Markos Johnson, causing the truck to strike the Plaintiff, Brandon Orvis, a pedestrian. As a result of the collision, Plaintiff has incurred medical expenses, lost wages, property damage and other special expenses in an amount to be proven at trial of this cause.

2. Jurisdiction and venue are appropriate in Allen County, Indiana, as said collision occurred within the boundaries of Allen County, State of Indiana.

FIRST CAUSE OF ACTION

NEGLIGENCE OF TRUCK DRIVER

3. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 2 above as if fully restated verbatim.

4. On or about May 26, 2021, Defendant Markos Johnson negligently drove a tractor-trailer striking the Plaintiff, Brandon Orvis.

5. Defendant Markos Johnson had a duty to operate his tractor trailer in a safe and reasonable manner.

6. Defendant Markos Johnson failed in the above mentioned duties and is therefore negligent.

7. Defendant Markos Johnson's negligence was the direct and proximate cause of Plaintiff's injuries.

8. Plaintiff's injuries and damages are permanent.

9. As a direct and proximate result of Markos Johnson's negligence, Plaintiff Brandon Orvis has suffered lost wages.

10. Plaintiff, Brandon Orvis, has incurred medical bills for the treatment of his injuries directly resulting from this collision.

11. As a direct and proximate result of Markos Johnson's negligence, Brandon Orvis has experienced physical and mental pain and suffering, lost wages and property damage and has lost the ability to perform usual activities, resulting in a diminished quality of life.

SECOND CAUSE OF ACTION

NEGLIGENCE PER SE OF TRUCK DRIVER

12. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 11 above as if fully restated verbatim.

13. Markos Johnson violated state and federal statutes and regulations including but not limited to Title 9 of the Indiana Code.

14. Defendant Markos Johnson's statutory violations directly and proximately caused Plaintiff's damages and injuries.

15. Defendant Markos Johnson is negligent per se based on these statutory and regulatory violations.

THIRD CAUSE OF ACTION

RESPONDEAT SUPERIOR OF TRUCK COMPANY

16. Plaintiff realleges and incorporates herein by reference paragraphs 1 through 15 above as if fully restated verbatim.

17. Defendant Markos Johnson was the employee, agent, servant, or independent contractor for Diamonds of Trucking LLC. Accordingly, Diamonds of Trucking LLC is vicariously liable for the acts of Defendant Markos Johnson for the causes of action above.

WHEREFORE, the Plaintiff, Brandon Orvis, by counsel, Ken Nunn Law Office, demand judgment against the Defendants, Markos Johnson and Diamonds of Trucking LLC, for permanent injuries in a reasonable amount to be determined at the trial of this cause, for medical expenses, lost wages, property damage and other special expenses, court costs and all other just and proper relief in the premises.

KEN NUNN LAW OFFICE

BY: s/ Daniel Gore
Daniel Gore, #31322-53
KEN NUNN LAW OFFICE
104 South Franklin Road
Bloomington, IN 47404
Phone: (812) 332-9451
Fax: (812) 331-5321
E-mail: dgore@kennunn.com

REQUEST FOR TRIAL BY JURY

Comes now the plaintiff, by counsel, Ken Nunn Law Office, and requests that this matter be tried by jury pursuant to Trial Rule 38.

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104 South Franklin Road
Bloomington, IN 47404
Phone: (812) 332-9451
Fax: (812) 331-5321
E-mail: dgore@kennunn.com

Daniel Gore, #31322-53
Ken Nunn Law Office
104 South Franklin Road
Bloomington, IN 47404
Telephone: 812-332-9451
Fax Number: 812-331-5321
Attorney for Plaintiff